

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[816 NE2d 184, 782 NYS2d 395]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RASHAN
YATES, Appellant.

Decided June 24, 2004

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered July 24, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Albany County (Joseph C. Teresi, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the fifth degree.

People v Yates, 307 AD2d 593, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Detaining Taxicab Passenger

In a criminal prosecution for possession of controlled substances found on defendant's person, the arresting officer testified that he believed that defendant, the sole passenger in a lawfully stopped taxi, was attempting to exit the vehicle too quickly to have paid his fare, in violation of Penal Law § 165.15. Under these circumstances, he properly detained defendant temporarily for the limited purpose of ascertaining from the taxicab driver whether defendant had paid his fare.

APPEARANCES OF COUNSEL

Proskauer Rose LLP, New York City (*Jeremy R. Feinberg* of counsel), for appellant.

Paul A. Clyne, District Attorney, Albany (*Christopher D. Horn* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. The

arresting officer testified that he believed that defendant, the sole passenger in a lawfully stopped taxi, was attempting to exit the vehicle too quickly to have paid his fare, in violation of Penal Law § 165.15. Under these circumstances he properly detained defendant temporarily for the limited purpose of ascertaining from the driver whether defendant had in fact paid his fare. We need not now resolve the broader issue whether a police officer may, as a matter of course, compel a passenger to remain inside a lawfully stopped vehicle (*see People v McLaurin*, 70 NY2d 779, 781 [1987]).

Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur; Chief Judge KAYE taking no part.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, in a memorandum.

[816 NE2d 183, 782 NYS2d 394]

In the Matter of RICHARD E. CANTWELL, as District Attorney of Clinton County, Respondent, v KEVIN K. RYAN, as Acting Judge, County Court of Clinton County, Appellant.

Decided June 24, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered October 23, 2003, in a proceeding pursuant to CPLR article 78 (commenced in the Appellate Division pursuant to CPLR 506 [b] [1]). The Appellate Division granted the petition and prohibited respondent Judge from enforcing two orders directing petitioner District Attorney to submit evidence and additional charges to a grand jury.

Matter of Cantwell v Ryan, 309 AD2d 1042, affirmed.

HEADNOTE

District and Prosecuting Attorneys — Authority to Prosecute — Authority of Court to Direct Resubmission of Charges to Grand Jury

Respondent County Judge had no authority to issue orders directing petitioner District Attorney to re-present a criminal matter to a grand jury and instruct the jury to consider lesser charges, after a grand jury had returned a no true bill in connection with intentional and depraved indiffer-

ence murder charges. The County Judge's reliance on CPL 190.75 (3) was misplaced. CPL 190.75 (3) provides that when a grand jury has dismissed a charge pursuant to section 190.75 (1), the charge may be resubmitted to a grand jury if the court "in its discretion authorizes or directs the people to resubmit such charge to the same or another grand jury." The County Judge did not direct the District Attorney to resubmit the same charge that the grand jury had previously considered and dismissed, but instead directed that other or additional (i.e., lesser) charges be submitted.

APPEARANCES OF COUNSEL

Eliot Spitzer, Attorney General, New York City (Robin A. Forshaw, Peter B. Pope, Daniel Smirlock and Wayne Benjamin of counsel), for appellant.

New York Prosecutors Training Institute, Inc., Albany (Robert J. Conflitti and Susan L. Valle of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The judgment of the Appellate Division should be affirmed without costs.

Days after a grand jury returned a "no true bill" in connection with intentional and depraved indifference murder charges (Penal Law § 125.25 [1], [2]) against Lawrence Crouthers, the County Court Judge learned of the concerns of a grand juror who felt it might be appropriate to reconvene the grand jury so that it could consider lesser charges. The judge arranged for the juror to appear in open court and directed the prosecutor to be present, along with the grand jury's foreperson or assistant foreperson. The court further ordered the prosecutor to produce the grand jury minutes. After the court aired these concerns, the prosecutor stated that he had no intention of re-presenting the matter. The court issued a decision concluding that the proof would have supported the submission of at least two other charges, manslaughter in the second degree (Penal Law § 125.15) and criminally negligent homicide (Penal Law § 125.10), and ordered the prosecutor to present the case to another grand jury and to instruct it to consider those lesser charges and any other appropriate ones (*see People v Crouthers*, 193 Misc 2d 471, 477 [2002]).

After the prosecutor sought to reargue, the court issued a second order by "simply directing that within 45 days of this order lesser crimes [of the prosecutor's choosing] be submitted for the second grand jury's consideration," and otherwise denied reargument.

The Appellate Division properly granted the District Attorney's petition prohibiting the County Judge from enforcing its two orders (*see* 309 AD2d 1042 [3d Dept 2003]). The County Judge's reliance on CPL 190.75 (3) is misplaced. That section provides that when a grand jury has dismissed a charge pursuant to section 190.75 (1) (owing to legally insufficient evidence or when the grand jury is not satisfied that there is reasonable evidence to believe that the defendant committed the crime or any other offense) it may be resubmitted to a grand jury only if the court "in its discretion authorizes or directs the people to resubmit *such charge* to the same or another grand jury" (emphasis supplied). Here, as the prosecution points out, the County Judge did not direct the District Attorney to resubmit the same charge that the grand jury had previously considered and dismissed. The judge directed that other or additional (i.e., lesser) charges be submitted. Accordingly, we agree with the Appellate Division that the County Judge had no authority to issue the orders in question.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), judgment affirmed, without costs, in a memorandum.

[816 NE2d 186, 782 NYS2d 397]

IVO STEJSKAL et al., Appellants, v ALBERT SIMONS III et al.,
Respondents. (And a Third-Party Action.)

Decided June 24, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 20, 2003. The Appellate Division, with two Justices dissenting, (1) dismissed an appeal from so much of an order of the Supreme Court, Kings County (Lawrence Knipel, J.), which had granted, on consent, that branch of defendants' summary judgment motion dismissing plaintiff's Labor Law § 240 (1) and § 241 (6) causes of action insofar as asserted against defendant Irvine Realty Group, Inc., (2) affirmed, insofar as reviewed, so much of the order as granted that branch of defendants' motion for summary judgment dismissing plaintiff's Labor Law § 240

(1) and § 241 (6) causes of action insofar as asserted against the Simons defendants, and denied plaintiffs' cross motion for summary judgment on liability on the Labor Law § 240 (1) cause of action, and (3) awarded defendants one bill of costs.

Stejskal v Simons, 309 AD2d 853, affirmed.

HEADNOTE

Labor — Safe Place to Work

The Appellate Division properly affirmed an order granting defendant's summary judgment motion dismissing plaintiffs' Labor Law § 240 (1) and § 241 (6) causes of action. The evidence unequivocally demonstrated that the sole purpose of the construction work was to convert what was a multiple dwelling into a one-family dwelling for the owners' use. Thus, defendant owners were entitled to avail themselves of the one- or two-family homeowner's exemption provided in Labor Law § 240 (1) and § 241.

APPEARANCES OF COUNSEL

Profeta & Eisenstein, New York City (*Fred R. Profeta, Jr.*, of counsel), for appellants.

DeCicco, Gibbons & McNamara, P.C., New York City (*Dennis A. Breen* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs. The evidence unequivocally demonstrated that the sole purpose of the construction work was to convert what was a multiple dwelling into a one-family dwelling for the owners' use. Thus, defendant owners were entitled to avail themselves of the one- or two-family homeowner's exemption provided in Labor Law § 240 (1) and § 241 (*see Khela v Neiger*, 85 NY2d 333, 338 [1995]; *Cannon v Putnam*, 76 NY2d 644, 650 [1990]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, with costs, in a memorandum.

In the Matter of ANTHONY BONACCI, Appellant, v GLENN S. GOORD, as Commissioner of New York State Department of Correctional Services, et al., Respondents.

Submitted May 17, 2004; decided June 24, 2004

Reported below, 4 AD3d 898.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

In the Matter of CITY COUNCIL OF THE CITY OF WATERVLIET et al., Appellants, v TOWN BOARD OF THE TOWN OF COLONIE, Respondent.

Submitted June 21, 2004; decided June 24, 2004

Reported below, 309 AD2d 1114.

Motion by New York State Department of Environmental Conservation for leave to file a brief amicus curiae on the appeal herein granted. Twenty copies of the brief may be filed and three copies served within 20 days.

RAMON FRESCO et al., Respondents, v 157 EAST 72ND STREET CONDOMINIUM et al., Defendants, and DNA CONSTRUCTION CORP., Sued Herein as DNA CONSTRUCTION, Appellant and Third-Party Plaintiff-Appellant-Respondent. LUMAR RESTORATION CORP., Third-Party Defendant-Respondent-Appellant. (And Another Action.)

Submitted April 19, 2004; decided June 24, 2004

Reported below, 2 AD3d 326.

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Whitfield v City of New York*, 90 NY2d 777).

SHARWLINE NICHOLSON et al., Respondents, v NICHOLAS SCOPETTA et al., Appellants, et al., Defendants.

Submitted June 14, 2004; decided June 24, 2004

Motion by The Center for Family Representation, Inc. to join as amicus curiae in the proposed brief submitted by New York Legal Assistance Group et al. granted.

SHARWLINE NICHOLSON et al., Respondents, v NICHOLAS SCOPETTA et al., Appellants, et al., Defendants.

Submitted May 24, 2004; decided June 24, 2004

Motion by New York Legal Assistance Group et al. for leave to file a brief amici curiae on consideration of certified question

herein granted to the extent that the proposed brief is accepted as filed. Two additional copies of the brief may be served within 10 days.

SHARWLINE NICHOLSON et al., Respondents, v NICHOLAS SCOP-
PETTA et al., Appellants, et al., Defendants.

Submitted June 21, 2004; decided June 24, 2004

Motion by Wilbur McReynolds for leave to appear amicus curiae on consideration of certified question herein granted to the extent that the proposed brief is accepted as filed. Two additional copies of the brief may be served within 10 days.

SHARWLINE NICHOLSON et al., Respondents, v NICHOLAS SCOP-
PETTA et al., Appellants, et al., Defendants.

Submitted May 24, 2004; decided June 24, 2004

Motion by Ohio Domestic Violence Network et al. for leave to appear amici curiae on consideration of certified question herein granted to the extent that the proposed brief is accepted as filed. Two additional copies of the brief may be served within 10 days.

In the Matter of NORMAN D., Appellant. COMMISSIONER OF THE
NEW YORK STATE OFFICE OF MENTAL HEALTH, Respondent.

Submitted June 1, 2004; decided June 24, 2004

Reported below, 309 AD2d 143.

Motion by Donald A. Williams, District Attorney, Ulster County, for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEREK
ANDRADES, Appellant.

Submitted June 21, 2004; decided June 24, 2004

Reported below, 4 AD3d 180.

Motion for assignment of counsel granted and Robert S. Dean,

Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS HANLEY, Appellant.

Submitted May 17, 2004; decided June 24, 2004

Reported below, 2 AD3d 333.

Motion for assignment of counsel denied without prejudice to renewal of the motion upon submissions by the appellant showing assets or income available to him.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v T.J. CHARLES HARDY, Appellant.

Submitted June 14, 2004; decided June 24, 2004

Reported below, 1 AD3d 456.

Motion for assignment of counsel granted and Robert C. Mitchell, Esq., Legal Aid Society of Suffolk County, Inc., Arthur M. Cromarty Court Complex, 300 Center Drive, P.O. Box 1697, Riverhead, NY 11901-0960 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT SHULMAN, Appellant.

Submitted June 21, 2004; decided June 24, 2004

Motion by Association of the Bar of the City of New York for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed.

RAY SMITH, JR., et al., Respondents, v JOHN GIROLAMO, Appellant, et al., Defendants.

Submitted April 5, 2004; decided June 24, 2004

Reported below, 4 AD3d 219.

Motion to dismiss appeal granted and appeal dismissed, with \$400 costs and \$100 costs of motion, upon the ground that no substantial constitutional question is directly involved.

[816 NE2d 191, 782 NYS2d 401]

In the Matter of LESLIE DOWLEYNE et al., Appellants, v NEW YORK CITY TRANSIT AUTHORITY, Respondent.

Decided June 29, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 14, 2003. The Appellate Division (1) reversed, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Joan Madden, J.), which had granted petitioners' motion pursuant to CPLR 7510 to confirm an arbitration award overturning respondent's determination that petitioner Dowleyne had, by failing to produce an adequate urine sample, refused to submit to a random drug test, and had directed respondent to reinstate Dowleyne as a bus driver, (2) denied the motion, (3) granted the cross petition, (4) vacated the arbitration award, and (5) removed Dowleyne from her bus driver position.

Matter of Dowleyne v New York City Tr. Auth., 309 AD2d 583, reversed.

HEADNOTE

Arbitration — Confirming or Vacating Award

In an arbitration proceeding, an Appellate Division order which had vacated an arbitration award and removed petitioner from her bus driver position is reversed and the judgment confirming the arbitration award is reinstated. The Appellate Division improperly substituted its factual finding for that of a majority of the arbitration panel.

APPEARANCES OF COUNSEL

Kennedy, Schwartz & Cure, P.C., New York City (*Arthur Z. Schwartz* and *Elizabeth M. Pilecki* of counsel), for appellants.

Richard Schoolman, Brooklyn, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and

the judgment of Supreme Court confirming the arbitration award reinstated, with costs.

The Appellate Division's vacatur cannot stand because it improperly substituted its factual finding for that of a majority of the arbitration panel.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order reversed, with costs, and judgment of Supreme Court, New York County, reinstated, in a memorandum.

ADIRONDACK PARK AGENCY, Respondent, v JOHN A. BUCCI et al.,
Appellants, et al., Defendants, and MARYLEE ARMOUR,
Intervenor-Appellant.

Submitted May 17, 2004; decided June 29, 2004

Reported below, 2 AD3d 1293.

Motion by John and Linda Bucci for leave to appeal dismissed upon the ground that as to them the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion by Marylee Armour for leave to appeal denied.

ALICE CLISSURAS, Appellant, v CONCORD VILLAGE OWNERS, INC.,
et al., Respondents.

Submitted May 3, 2004; decided June 29, 2004

Reported below, 299 AD2d 446.

On the Court's own motion, appeal, insofar as taken from the Appellate Division orders, dismissed, without costs, as untimely (CPLR 5513), and appeal, insofar as taken from letters of the Clerk's Office of the Appellate Division, Second Department, dismissed, without costs, upon the ground that the letters do not constitute an order or judgment appealable to the Court of Appeals (*see* CPLR 5512 [a]; 5601; NY Const, art VI, § 3). Motion for other relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

CREDIT SUISSE FIRST BOSTON CORPORATION, Appellant, v WILLIAM PITOFKY et al., Respondents.

Submitted May 13, 2004; decided June 29, 2004

Reported below, 2 AD3d 6.

Motion for leave to appeal granted. Motion for a stay granted to the extent of staying so much of the Appellate Division order as directs the parties to proceed to arbitration.

GENERAL MOTORS ACCEPTANCE CORPORATION et al., Respondents, v NATIONWIDE INSURANCE COMPANY, Appellant.

Submitted June 1, 2004; decided June 29, 2004

Reported below, 5 AD3d 252.

Motion by Thomas R. Newman, Esq. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affirmation is accepted as filed.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(June 1, 2004 through June 30, 2004)

J.P. Doumak, Inc. v Westgate Fin. Corp.	1st Dept: 4 AD3d 62	6/21/04
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APPEALS WITHDRAWN AND DISCONTINUED

(June 1, 2004 through June 30, 2004)

Moran Towing Corp., Matter of, v Urbach	3d Dept: 1 AD3d 722	6/8/04
Niagara Mohawk Power Corp., Matter of, v Town of Tonawanda Assessor	4th Dept: 309 AD2d 1251	6/21/04
People v Ammarito	1st Dept: 306 AD2d 99	6/28/04

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2004 through June 30, 2004)

Concord, Town of, v Duwe	County Ct, 2/27/04 (Erie)	granted 6/18/04 (Rosenblatt, J.)
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People v Abreu (Jose)	1st Dept: 6 AD3d 1249 (Bronx)	denied 6/4/04 (Grafteo, J.)
People v Abreu (Manolo)	App Div, 2d Dept, 5/7/04 (Dutchess)	dismissed 6/23/04 (Read, J.)
People v Alvarenga	2d Dept: 5 AD3d 499 (Queens)	denied 6/8/04 (R.S. Smith, J.)
People v Andrickson	2d Dept: 7 AD3d 725 (Queens)	denied 6/22/04 (Kaye, Ch.J.)
People v Anekwe	2d Dept: 5 AD3d 499 (Kings)	denied 6/30/04 (G.B. Smith, J.)
People v Anonymous	1st Dept: 7 AD3d 963 (NY)	denied 6/21/04 (Kaye, Ch.J.)
People v Antigua	1st Dept: 5 AD3d 272 (Bronx)	denied 6/17/04 (Kaye, Ch.J.)
People v Antonelli	2d Dept: 6 AD3d 543 (Kings)	denied 6/30/04 (G.B. Smith, J.)
People v Arroyo	1st Dept: 6 AD3d 277 (NY)	denied 6/22/04 (Kaye, Ch.J.)
People v As-Sakaf	App Div, 2d Dept, 4/12/04 (Kings)	dismissed 6/23/04 (G.B. Smith, J.)
People v Atae	App Term, 2d Dept, 2003 NY Slip Op 50977(U) (Queens)	denied 6/24/04 (G.B. Smith, J.)
People v Atkins	3d Dept: 309 AD2d 971 (Essex)	denied 6/23/04 (G.B. Smith, J.)
People v Atwood	4th Dept: 2 AD3d 1331 (Cattaraugus)	denied 6/18/04 (Kaye, Ch.J.) (Appeal No. 1)
People v Austin	4th Dept: 6 AD3d 1249 (Ontario)	denied 6/17/04 (Kaye, Ch.J.)
People v Baez	1st Dept: 6 AD3d 1249 (NY)	denied 6/25/04 (Grafteo, J.)
People v Barnes (Joshua)	2d Dept: 5 AD3d 788 (Kings)	denied 6/30/04 (Ciparick, J.)
People v Barnes (Kaisen)	2d Dept: 4 AD3d 433 (Queens)	denied 6/10/04 (R.S. Smith, J.)
People v Barnwell	4th Dept: 6 AD3d 1147 (Monroe)	granted 6/22/04 (Kaye, Ch.J.) (Appeal No. 2)
People v Barriento	1st Dept: 5 AD3d 220 (Bronx)	denied 6/21/04 (Kaye, Ch.J.)
People v Batista	1st Dept: 4 AD3d 222 (NY)	denied 6/23/04 (G.B. Smith, J.)
People v Battey	2d Dept: 6 AD3d 544 (Queens)	denied 6/23/04 (Read, J.)
People v Bell	3d Dept: 5 AD3d 804 (Albany)	denied 6/10/04 (R.S. Smith, J.)
People v Benson	4th Dept: 6 AD3d 1173 (Steuben)	denied 6/21/04 (Grafteo, J.)

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People v Berk	App Term, 1st Dept: 2 Misc 3d 132(A) (NY)	denied 6/23/04 (Kaye, Ch.J.)
People v Berry	3d Dept: 5 AD3d 866 (Albany)	denied 6/23/04 (G.B. Smith, J.)
People v Beverly	3d Dept: 6 AD3d 874 (Albany)	denied 6/24/04 (R.S. Smith, J.)
People v Black	1st Dept: 6 AD3d 182 (Bronx)	denied 6/7/04 (Grafteo, J.)
People v Blak	1st Dept: 6 AD3d 301 (NY)	denied 6/7/04 (Grafteo, J.)
People v Bolden	1st Dept: 6 AD3d 315 (NY)	denied 6/21/04 (Grafteo, J.)
People v Bomasuto	4th Dept: 6 AD3d 1148 (Chautauqua)	denied 6/21/04 (Kaye, Ch.J.)
People v Bonner	2d Dept: 5 AD3d 500 (Kings)	denied 6/10/04 (Ciparick, J.)
People v Brooks	App Term, 1st Dept: 2 Misc 3d 133(A) (NY)	denied 6/10/04 (Ciparick, J.)
People v Brown (Kenneth)	4th Dept: 4 AD3d 886 (Monroe)	denied 6/17/04 (Kaye, Ch.J.)
People v Brown (Michael)	3d Dept: 2 AD3d 1216 (St. Lawrence)	denied 6/9/04 (Kaye, Ch.J.)
People v Brown (Michael)	3d Dept: 2 AD3d 1216 (St. Lawrence)	denied 6/18/04 (Kaye, Ch.J.)
People v Browne	1st Dept: 299 AD2d 975 (Bronx)	denied 6/4/04 (Kaye, Ch.J.) (upon reconsideration)
People v Burke	2d Dept: 7 AD3d 536 (Richmond)	denied 6/15/04 (Kaye, Ch.J.)
People v Bushey	County Ct, 3/12/04 (Cortland)	denied 6/24/04 (G.B. Smith, J.)
People v Butler (Shondell)	4th Dept: 2 AD3d 1457 (Onondaga)	denied 6/18/04 (Kaye, Ch.J.) (Appeal No. 1)
People v Butler (Shondell)	4th Dept: 2 AD3d 1459 (Onondaga)	denied 6/18/04 (Kaye, Ch.J.) (Appeal No. 2)
People v Calderon	1st Dept: 5 AD3d 276 (NY)	dismissed 6/25/04 (G.B. Smith, J.)
People v Callen	1st Dept: 5 AD3d 301 (NY)	denied 6/24/04 (Ciparick, J.)
People v Cameron	2d Dept: 6 AD3d 546 (Nassau)	denied 6/24/04 (G.B. Smith, J.)
People v Campbell (Albert)	1st Dept: 5 AD3d 290 (NY)	denied 6/30/04 (G.B. Smith, J.)
People v Campbell (Winston)	2d Dept: 6 AD3d 623 (Kings)	denied 6/24/04 (G.B. Smith, J.)
People v Capullo	1st Dept: 5 AD3d 1130 (NY)	denied 6/30/04 (G.B. Smith, J.)

People v Carpenter	App Div, 3d Dept, 5/21/04 (Cortland)	denied 6/21/04 (Kaye, Ch.J.)
People v Carter	4th Dept: 6 AD3d 1174 (Erie)	denied 6/21/04 (Kaye, Ch.J.)
People v Castellano	1st Dept: 6 AD3d 278 (NY)	denied 6/24/04 (R.S. Smith, J.)
People v Cesar	2d Dept: 6 AD3d 547 (Queens)	denied 6/16/04 (Rosenblatt, J.)
People v Chambers	2d Dept: 6 AD3d 454 (Queens)	denied 6/21/04 (Grafteo, J.)
People v Chapman	County Ct, 4/30/04 (Cattaraugus)	denied 6/24/04 (G.B. Smith, J.)
People v Chappelle	1st Dept: 5 AD3d 146 (NY)	denied 6/4/04 (Kaye, Ch.J.)
People v Chavis	2d Dept: 7 AD3d 537 (Orange)	denied 6/21/04 (Grafteo, J.)
People v Clark	4th Dept: 6 AD3d 1066 (Monroe)	denied 6/25/04 (Grafteo, J.)
People v Cobb (Deval)	2d Dept: 5 AD3d 796 (Dutchess)	denied 6/10/04 (Ciparick, J.)
People v Cobb (Michael)	App Div, 2d Dept, 11/20/03 (Kings)	denied 6/23/04 (Read, J.)
People v Coleman (Charles)	4th Dept: 5 AD3d 1074 (Erie)	denied 6/22/04 (R.S. Smith, J.) (Appeal No. 2)
People v Coleman (Ismail)	3d Dept: 5 AD3d 956 (Albany)	denied 6/22/04 (R.S. Smith, J.)
People v Coleman (Muhammad)	3d Dept: 5 AD3d 956 (Albany)	denied 6/22/04 (R.S. Smith, J.)
People v Colin	1st Dept: 5 AD3d 189 (NY)	denied 6/30/04 (G.B. Smith, J.)
People v Collesano	4th Dept: 8 AD3d 1008 (Niagara)	denied 6/21/04 (Kaye, Ch.J.)
People v Colon (Jose)	1st Dept: 5 AD3d 275 (Bronx)	denied 6/4/04 (Kaye, Ch.J.)
People v Colon (Jose)	4th Dept: 6 AD3d 1250 (Cayuga)	denied 6/4/04 (Grafteo, J.)
People v Colon (Luis)	2d Dept: 5 AD3d 605 (Orange)	denied 6/14/04 (Kaye, Ch.J.)
People v Cooke	2d Dept: 6 AD3d 625 (Queens)	denied 6/21/04 (Grafteo, J.)
People v Copeland	4th Dept: 6 AD3d 1171 (Steuben)	denied 6/21/04 (Kaye, Ch.J.)
People v Corrado (Diane)	2d Dept: 2 AD3d 1492 (Suffolk)	denied 6/25/04 (G.B. Smith, J.)
People v Corrado (Dianne)	2d Dept: 2 AD3d 1492 (Suffolk)	denied 6/25/04 (G.B. Smith, J.)
People v Crespo	1st Dept: 6 AD3d 303 (Bronx)	denied 6/25/04 (Grafteo, J.)
People v Crutchfield	2d Dept: 5 AD3d 501 (Kings)	denied 6/14/04 (Kaye, Ch.J.)

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People v D'Amore	2d Dept: 7 AD3d 635 (Suffolk)	denied 6/30/04 (G.B. Smith, J.)
People v Davis (Michael)	2d Dept: 5 AD3d 798 (Kings)	denied 6/21/04 (Kaye, Ch.J.)
People v Davis (Verly)	4th Dept: 6 AD3d 1168 (Erie)	denied 6/21/04 (Kaye, Ch.J.)
People v De Los Dios	1st Dept: 6 AD3d 1250 (Bronx)	denied 6/21/04 (Kaye, Ch.J.)
People v Desio	2d Dept: 5 AD3d 606 (Queens)	denied 6/24/04 (Ciparick, J.)
People v Dickson	2d Dept: 5 AD3d 501 (Kings)	denied 6/14/04 (Kaye, Ch.J.)
People v Dixon	2d Dept: 5 AD3d 693 (Queens)	denied 6/10/04 (Rosenblatt, J.)
People v Donald (Farrah)	4th Dept: 5 AD3d 1043 (Monroe)	denied 6/7/04 (Grafteo, J.)
People v Donald (Farrah)	4th Dept: 6 AD3d 1177 (Monroe)	denied 6/24/04 (G.B. Smith, J.)
People v Duran	3d Dept: 6 AD3d 809 (Essex)	denied 6/22/04 (Kaye, Ch.J.)
People v Durant	3d Dept: 6 AD3d 938 (St. Lawrence)	denied 6/22/04 (Kaye, Ch.J.)
People v Dusty	3d Dept: 6 AD3d 738 (Schenectady)	denied 6/24/04 (R.S. Smith, J.)
People v Egan (Robbin)	4th Dept: 6 AD3d 1203 (Ontario)	denied 6/22/04 (Kaye, Ch.J.) (Appeal No. 1)
People v Egan (Robbin)	4th Dept: 6 AD3d 1206 (Ontario)	denied 6/17/04 (Kaye, Ch.J.) (Appeal No. 2)
People v Ellis (Daven)	4th Dept: 4 AD3d 877 (Erie)	denied 6/22/04 (Kaye, Ch.J.)
People v Ellis (Deshon)	2d Dept: 5 AD3d 694 (Kings)	denied 6/22/04 (R.S. Smith, J.)
People v Elwen	4th Dept: 5 AD3d 1130 (Orleans)	denied 6/23/04 (G.B. Smith, J.)
People v Ervin	1st Dept: 5 AD3d 316 (NY)	denied 6/17/04 (Kaye, Ch.J.)
People v Esposito	2d Dept: 5 AD3d 607 (Nassau)	denied 6/8/04 (Ciparick, J.)
People v Estrada	2d Dept: 5 AD3d 791 (Queens)	denied 6/10/04 (Ciparick, J.)
People v Evans	4th Dept: 6 AD3d 1250 (Monroe)	denied 6/14/04 (Grafteo, J.)
People v Faden	App Term, 1st Dept: 2 Misc 3d 133(A) (Bronx)	denied 6/4/04 (Kaye, Ch.J.)
People v Farrow	2d Dept: 6 AD3d 547 (Kings)	denied 6/22/04 (Kaye, Ch.J.)
People v Feliciano	4th Dept: 5 AD3d 1130 (Monroe)	denied 6/14/04 (Read, J.)

People v Ferguson	1st Dept: 5 AD3d 250 (NY)	denied 6/10/04 (Ciparick, J.)
People v Ferri	2d Dept: 5 AD3d 791 (Kings)	denied 6/23/04 (G.B. Smith, J.)
People v Fiallo	1st Dept: 6 AD3d 176 (NY)	denied 6/14/04 (Kaye, Ch.J.)
People v Figueroa (Nelson)	1st Dept: 5 AD3d 1130 (NY)	denied 6/8/04 (R.S. Smith, J.)
People v Figueroa (Steven)	2d Dept: 6 AD3d 720 (Nassau)	dismissed 6/25/04 (Grafteo, J.)
People v Figueroa (William)	2d Dept: 5 AD3d 502 (Kings)	denied 6/24/04 (G.B. Smith, J.)
People v Fitzsimmons	4th Dept: 4 AD3d 743 (Oneida)	denied 6/10/04 (R.S. Smith, J.)
People v Flemming	App Div, 1st Dept, 4/13/04 (NY)	denied reconsideration 6/23/04 (R.S. Smith, J.)
People v Ford	2d Dept: 2 AD3d 456 (Queens)	denied 6/15/04 (Kaye, Ch.J.)
People v Franklin (Nathaniel)	2d Dept: 5 AD3d 791 (Kings)	denied 6/14/04 (Kaye, Ch.J.)
People v Franklin (Patricia)	1st Dept: 5 AD3d 219 (NY)	denied 6/23/04 (G.B. Smith, J.)
People v Frazier	1st Dept: 5 AD3d 288 (NY)	denied 6/23/04 (G.B. Smith, J.)
People v Freeman	1st Dept: 2 AD3d 242 (Bronx)	denied 6/22/04 (Kaye, Ch.J.)
People v Funches	1st Dept: 4 AD3d 206 (NY)	denied 6/10/04 (Ciparick, J.)
People v Garcia (Arturo)	App Div, 2d Dept, 3/11/04 (Kings)	dismissed 6/14/04 (Read, J.)
People v Garcia (Francisco)	2d Dept: 5 AD3d 791 (Queens)	denied 6/10/04 (Ciparick, J.)
People v Garcia (Luis)	1st Dept: 5 AD3d 1130 (Bronx)	denied 6/23/04 (Read, J.)
People v Gilmore	3d Dept: 6 AD3d 748 (Greene)	denied 6/24/04 (G.B. Smith, J.)
People v Glanda	3d Dept: 5 AD3d 945 (Essex)	denied 6/22/04 (Kaye, Ch.J.)
People v Glover	4th Dept: 4 AD3d 900 (Monroe)	denied 6/24/04 (Read, J.)
People v Gonzalez (Alexander)	1st Dept: 6 AD3d 303 (Bronx)	denied 6/25/04 (Grafteo, J.)
People v Gonzalez (Eric)	2d Dept: 5 AD3d 702 (Orange)	denied 6/23/04 (R.S. Smith, J.)
People v Gonzalez (Luis)	App Div, 1st Dept, 5/3/04 (NY)	dismissed 6/30/04 (Ciparick, J.)

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People v Goodwin	2d Dept: 6 AD3d 1251 (Suffolk)	denied 6/4/04 (Grafteo, J.)
People v Grady	4th Dept: 6 AD3d 1149 (Onondaga)	denied 6/22/04 (Kaye, Ch.J.)
People v Gregory	2d Dept: 6 AD3d 538 (Nassau)	denied 6/25/04 (G.B. Smith, J.)
People v Gurley	App Term, 2d Dept: 1 Misc 3d 133(A) (Suffolk)	denied 6/23/04 (Read, J.)
People v Guzman (Angel)	2d Dept: 6 AD3d 457 (Orange)	denied 6/23/04 (Read, J.)
People v Guzman (Jose)	1st Dept: 6 AD3d 359 (NY)	denied 6/24/04 (G.B. Smith, J.)
People v Hall	1st Dept: 309 AD2d 511 (Bronx)	denied 6/15/04 (Kaye, Ch.J.) (upon reconsideration)
People v Hamilton (Abdel)	1st Dept: 3 AD3d 405 (Bronx)	denied 6/22/04 (Kaye, Ch.J.)
People v Hamilton (Leonard)	4th Dept: 5 AD3d 1130 (Cayuga)	denied 6/24/04 (G.B. Smith, J.)
People v Hankins	1st Dept: 6 AD3d 1249 (Bronx)	denied 6/23/04 (R.S. Smith, J.)
People v Harden	1st Dept: 6 AD3d 181 (NY)	denied 6/23/04 (R.S. Smith, J.)
People v Hardy	2d Dept: 5 AD3d 792 (Kings)	denied 6/23/04 (G.B. Smith, J.)
People v Harrell	2d Dept: 5 AD3d 503 (Kings)	denied 6/14/04 (Kaye, Ch.J.)
People v Harris (Carlos)	4th Dept: 4 AD3d 900 (Cattaraugus)	denied 6/24/04 (G.B. Smith, J.)
People v Harris (George)	1st Dept: 2 AD3d 267 (NY)	denied 6/18/04 (Kaye, Ch.J.)
People v Harrison	1st Dept: 6 AD3d 195 (Bronx)	denied 6/30/04 (Ciparick, J.)
People v Hatcher	1st Dept: 5 AD3d 218 (Bronx)	denied 6/22/04 (R.S. Smith, J.)
People v Hawkins	1st Dept: 6 AD3d 1249 (Bronx)	denied 6/23/04 (R.S. Smith, J.)
People v Heagney	4th Dept: 6 AD3d 1250 (Monroe)	denied 6/15/04 (Kaye, Ch.J.)
People v Hilken	4th Dept: 6 AD3d 1109 (Genesee)	denied 6/21/04 (Grafteo, J.)
People v Hinton	App Div, 2d Dept, 4/30/04 (Westchester)	dismissed 6/8/04 (Ciparick, J.)
People v Hodges	2d Dept: 6 AD3d 724 (Kings)	denied 6/7/04 (Grafteo, J.)
People v Holmes	2d Dept: 5 AD3d 793 (Westchester)	denied 6/23/04 (Read, J.)
People v Horne	2d Dept: 6 AD3d 549 (Kings)	denied 6/23/04 (G.B. Smith, J.)

People v Houghtaling	App Div, 3d Dept, 5/13/04 (Sullivan)	dismissed 6/25/04 (G.B. Smith, J.)
People v Irwin	4th Dept: 5 AD3d 1122 (Jefferson)	denied 6/23/04 (R.S. Smith, J.)
People v James	App Term, 1st Dept: 3 Misc 3d 134(A) (NY)	denied 6/30/04 (Grafteo, J.)
People v Jenty	2d Dept: 7 AD3d 964 (Kings)	denied 6/15/04 (Kaye, Ch.J.)
People v Jeter	2d Dept: 6 AD3d 459 (Kings)	denied 6/23/04 (R.S. Smith, J.)
People v Johnson (Bryant)	2d Dept: 7 AD3d 639 (Kings)	denied 6/21/04 (Grafteo, J.)
People v Johnson (Jermaine)	2d Dept: 5 AD3d 398 (Kings)	denied 6/22/04 (R.S. Smith, J.)
People v Johnson (Kevin)	4th Dept: 5 AD3d 1050 (Monroe)	denied 6/8/04 (Ciparick, J.)
People v Johnson (Ted)	1st Dept: 6 AD3d 226 (NY)	denied 6/29/04 (Ciparick, J.)
People v Johnson (Tyrone)	App Term, 2d Dept, Apr. 28, 2004 (Rockland)	denied 6/30/04 (Ciparick, J.)
People v Jones (Bernell)	1st Dept: 5 AD3d 167 (NY)	denied 6/7/04 (Grafteo, J.)
People v Jones (Keith)	2d Dept: 5 AD3d 794 (Queens)	denied 6/15/04 (Kaye, Ch.J.)
People v Kelly	2d Dept: 298 AD2d 465 (Kings)	denied 6/9/04 (Kaye, Ch.J.)
People v Kessler	2d Dept: 5 AD3d 504 (Nassau)	denied 6/8/04 (R.S. Smith, J.)
People v Keyser	4th Dept: 6 AD3d 1250 (Cayuga)	denied 6/24/04 (Ciparick, J.)
People v King (Michael)	2d Dept: 7 AD3d 640 (Queens)	denied 6/21/04 (Kaye, Ch.J.)
People v King (Naquan)	2d Dept: 6 AD3d 727 (Kings)	denied 6/24/04 (Ciparick, J.)
People v King (Thomas)	2d Dept: 4 AD3d 435 (Kings)	denied 6/23/04 (G.B. Smith, J.)
People v Knight	2d Dept: 6 AD3d 460 (Kings)	denied 6/10/04 (Rosenblatt, J.)
People v La Brosse	3d Dept: 7 AD3d 924 (St. Lawrence)	denied 6/21/04 (Grafteo, J.)
People v Lanzetta	County Ct, 3/18/04 (Erie)	denied 6/24/04 (G.B. Smith, J.)
People v Latiff	2d Dept: 6 AD3d 628 (Queens)	denied 6/30/04 (Ciparick, J.)
People v La Valley	3d Dept: 2 AD3d 1212 (St. Lawrence)	denied 6/18/04 (Kaye, Ch.J.)
People v La Var	4th Dept: 4 AD3d 787 (Erie)	denied 6/8/04 (R.S. Smith, J.)
People v Laws	1st Dept: 6 AD3d 212 (NY)	denied 6/30/04 (Ciparick, J.)

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People v Leabo	3d Dept: 2 AD3d 1213 (Franklin)	denied 6/22/04 (Kaye, Ch.J.)
People v Leach	1st Dept: 6 AD3d 238 (NY)	denied 6/23/04 (R.S. Smith, J.)
People v Leininger	4th Dept: 6 AD3d 1175 (Erie)	denied 6/23/04 (R.S. Smith, J.)
People v Leung (Keenan)	2d Dept: 3 AD3d 582 (Kings)	denied 6/25/04 (G.B. Smith, J.)
People v Leung (Kevin)	2d Dept: 3 AD3d 582 (Kings)	denied 6/25/04 (G.B. Smith, J.)
People v Lighthall	4th Dept: 6 AD3d 1170 (Oneida)	denied 6/18/04 (Rosenblatt, J.)
People v Linton	4th Dept: 5 AD3d 1130 (Erie)	denied 6/23/04 (G.B. Smith, J.)
People v Lipscomb	County Ct, 4/5/04 (Erie)	denied 6/23/04 (Read, J.)
People v Lobo	2d Dept: 6 AD3d 550 (Queens)	denied 6/15/04 (Kaye, Ch.J.)
People v Lopez (John)	1st Dept: 3 AD3d 455 (Bronx)	denied 6/22/04 (Kaye, Ch.J.)
People v Lopez (Malik)	1st Dept: 6 AD3d 252 (Bronx)	denied 6/22/04 (Kaye, Ch.J.)
People v Lopez (Rodolfo)	2d Dept: 6 AD3d 460 (Queens)	denied 6/9/04 (Kaye, Ch.J.)
People v Lucius	4th Dept: 6 AD3d 1251 (Monroe)	denied 6/22/04 (Kaye, Ch.J.)
People v Luddington	4th Dept: 5 AD3d 1042 (Onondaga)	denied 6/4/04 (Grafteo, J.)
People v Lugo	4th Dept: 5 AD3d 1130 (Monroe)	denied 6/10/04 (Ciparick, J.)
People v Lynch	2d Dept: 5 AD3d 698 (Orange)	denied 6/10/04 (Ciparick, J.)
People v Mackey	1st Dept: 5 AD3d 136 (NY)	denied 6/22/04 (R.S. Smith, J.)
People v Maldonado	2d Dept: 5 AD3d 505 (Kings)	denied 6/24/04 (Read, J.)
People v Mariani	4th Dept: 6 AD3d 1206 (Erie)	denied 6/24/04 (G.B. Smith, J.)
People v Marino	1st Dept: 6 AD3d 214 (Bronx)	denied 6/7/04 (Grafteo, J.)
People v Martinez (Ceasar)	1st Dept: 6 AD3d 1249 (Bronx)	denied 6/9/04 (Kaye, Ch.J.)
People v Martinez (Cesar)	1st Dept: 6 AD3d 1249 (Bronx)	denied 6/9/04 (Kaye, Ch.J.)
People v Mask	1st Dept: 7 AD3d 281 (NY)	denied 6/24/04 (R.S. Smith, J.)
People v Mathews	1st Dept: 4 AD3d 154 (Bronx)	denied 6/24/04 (G.B. Smith, J.)
People v Matthews	1st Dept: 5 AD3d 1130 (Bronx)	denied 6/14/04 (Kaye, Ch.J.)

People v Mazique	2d Dept: 7 AD3d 543 (Queens)	denied 6/25/04 (G.B. Smith, J.)
People v McClemore	4th Dept: 5 AD3d 1130 (Genesee)	granted 6/18/04 (Rosenblatt, J.)
People v McGlothin	2d Dept: 6 AD3d 462 (Nassau)	denied 6/23/04 (R.S. Smith, J.)
People v McKay	1st Dept: 6 AD3d 1250 (NY)	denied 6/14/04 (Kaye, Ch.J.)
People v McKeehan	4th Dept: 2 AD3d 1421 (Steuben)	denied 6/7/04 (Grafteo, J.)
People v McMillon	4th Dept: 6 AD2d 1172 (Erie)	denied 6/22/04 (Kaye, Ch.J.)
People v McWilliams	2d Dept: 7 AD3d 543 (Nassau)	denied 6/25/04 (R.S. Smith, J.)
People v Meagher	4th Dept: 4 AD3d 828 (Oneida)	denied 6/24/04 (G.B. Smith, J.)
People v Mejia	2d Dept: 6 AD3d 630 (Rockland)	denied 6/30/04 (Ciparick, J.)
People v Melendez	App Term, 1st Dept: 3 Misc 3d 132(A) (NY)	denied 6/21/04 (Kaye, Ch.J.)
People v Melio	2d Dept: 6 AD3d 552 (Suffolk)	denied 6/24/04 (R.S. Smith, J.)
People v Mendez	2d Dept: 5 AD3d 400 (Kings)	denied 6/23/04 (G.B. Smith, J.)
People v Mendoza	3d Dept: 5 AD3d 810 (Sullivan)	denied 6/8/04 (R.S. Smith, J.)
People v Mercado (Oscar)	2d Dept: 6 AD3d 630 (Westchester)	denied 6/24/04 (G.B. Smith, J.)
People v Mercado (Roberto)	1st Dept: 6 AD3d 317 (Bronx)	denied 6/23/04 (G.B. Smith, J.)
People v Miller (George)	1st Dept: 5 AD3d 192 (NY)	denied 6/14/04 (Kaye, Ch.J.)
People v Miller (Lamont)	2d Dept: 7 AD3d 815 (Queens)	denied 6/30/04 (G.B. Smith, J.)
People v Moller	2d Dept: 5 AD3d 795 (Nassau)	denied 6/23/04 (R.S. Smith, J.)
People v Monroe	1st Dept: 6 AD3d 240 (NY)	denied 6/30/04 (Ciparick, J.)
People v Moore	4th Dept: 6 AD3d 1093 (Wyoming)	denied 6/21/04 (Kaye, Ch.J.)
People v Morehouse	3d Dept: 5 AD3d 925 (Ulster)	denied 6/10/04 (Rosenblatt, J.)
People v Morris	1st Dept: 4 AD3d 115 (NY)	denied 6/4/04 (Kaye, Ch.J.)
People v Moss (Bernard)	2d Dept: 1 AD3d 532 (Kings)	denied 6/10/04 (Ciparick, J.)
People v Moss (Curtis)	4th Dept: 5 AD3d 1077 (Erie)	denied 6/10/04 (Ciparick, J.)
People v Mottshaw	4th Dept: 6 AD3d 1250 (Monroe)	denied 6/14/04 (Grafteo, J.)

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People v Moultrie (Bridgette)	2d Dept: 6 AD3d 730 (Kings)	denied 6/24/04 (G.B. Smith, J.)
People v Moultrie (Derrick)	1st Dept: 5 AD3d 241 (NY)	denied 6/24/04 (G.B. Smith, J.)
People v Mungin	2d Dept: 6 AD3d 730 (Queens)	denied 6/24/04 (Ciparick, J.)
People v Nazario	1st Dept: 4 AD3d 183 (NY)	granted 6/18/04 (Kaye, Ch.J.)
People v Negron	2d Dept: 7 AD3d 643 (Kings)	denied 6/25/04 (G.B. Smith, J.)
People v Nesmith	4th Dept: 6 AD3d 1125 (Monroe)	denied 6/24/04 (Read, J.)
People v Norris	2d Dept: 5 AD3d 796 (Kings)	denied 6/24/04 (G.B. Smith, J.)
People v Nunez	2d Dept: 7 AD3d 543 (Queens)	denied 6/23/04 (G.B. Smith, J.)
People v O'Connor	3d Dept: 6 AD3d 738 (Schenectady)	denied 6/24/04 (R.S. Smith, J.)
People v O'Hanlon (Daniel)	4th Dept: 5 AD3d 1012 (Ontario)	denied 6/23/04 (G.B. Smith, J.)
People v O'Hanlon (Horsey)	4th Dept: 5 AD3d 1012 (Ontario)	denied 6/23/04 (G.B. Smith, J.)
People v Ortiz	4th Dept: 5 AD3d 1042 (Erie)	denied 6/24/04 (Read, J.)
People v Pack	2d Dept: 4 AD3d 540 (Kings)	denied 6/23/04 (G.B. Smith, J.)
People v Page	2d Dept: 6 AD3d 553 (Nassau)	denied 6/25/04 (G.B. Smith, J.)
People v Parker	1st Dept: 4 AD3d 194 (NY)	denied 6/30/04 (G.B. Smith, J.)
People v Paskiewicz	4th Dept: 6 AD3d 1250 (Allegany)	denied 6/14/04 (Grafteo, J.)
People v Pena	1st Dept: 7 AD3d 259 (NY)	denied 6/30/04 (Grafteo, J.)
People v Perez	1st Dept: 5 AD3d 228 (NY)	denied 6/10/04 (Ciparick, J.)
People v Perron	3d Dept: 6 AD3d 937 (Washington)	denied 6/22/04 (Kaye, Ch.J.)
People v Perry	4th Dept: 6 AD3d 1250 (Monroe)	denied 6/24/04 (G.B. Smith, J.)
People v Person	4th Dept: 2 AD3d 1306 (Niagara)	denied 6/4/04 (Kaye, Ch.J.)
People v Phillips	1st Dept: 2 AD3d 278 (NY)	denied* 6/24/04 (Kaye, Ch.J.)
People v Pope (Darnell)	4th Dept: 6 AD3d 1128 (Monroe)	denied 6/21/04 (Grafteo, J.) (Appeal No. 1)

* Denied with leave to renew without prejudice to renew within 30 days upon determination of *People v Daniels* [— NY3d —, *appeal from* 308 AD2d 389 (1st Dept 2003), *lv granted* 1 NY3d 596 (2004)].

People v Pope (Darnell)	4th Dept: 6 AD3d 1128 (Monroe)	denied 6/21/04 (Grafteo, J.) (Appeal No. 2)
People v Porter	2d Dept: 4 AD3d 377 (Queens)	denied 6/14/04 (Kaye, Ch.J.)
People v Pratt	2d Dept: 5 AD3d 798 (Kings)	denied 6/21/04 (Kaye, Ch.J.)
People v Primm (Carl)	4th Dept: 5 AD3d 1131 (Genesee)	denied 6/24/04 (R.S. Smith, J.) (Appeal No. 1)
People v Primm (Carl)	4th Dept: 5 AD3d 1131 (Genesee)	denied 6/24/04 (R.S. Smith, J.) (Appeal No. 2)
People v Profit	2d Dept: 7 AD3d 545 (Queens)	denied 6/21/04 (Kaye, Ch.J.)
People v Profitt	2d Dept: 7 AD3d 545 (Queens)	denied 6/21/04 (Kaye, Ch.J.)
People v Prude (Clarence)	4th Dept: 2 AD3d 1318 (Monroe)	denied 6/22/04 (Kaye, Ch.J.) (Appeal No. 1)
People v Prude (Clarence)	4th Dept: 2 AD3d 1320 (Monroe)	denied 6/22/04 (Kaye, Ch.J.) (Appeal No. 2)
People v Pruitt	4th Dept: 6 AD3d 1233 (Monroe)	denied 6/21/04 (Grafteo, J.)
People v Pucci	4th Dept: 5 AD3d 1099 (Monroe)	denied 6/25/04 (G.B. Smith, J.)
People v Purdue	4th Dept: 6 AD3d 1102 (Erie)	denied 6/25/04 (G.B. Smith, J.)
People v Quinones	4th Dept: 5 AD3d 1093 (Erie)	denied 6/23/04 (R.S. Smith, J.)
People v Ramos	2d Dept: 6 AD3d 554 (Kings)	denied 6/10/04 (Ciparick, J.)
People v Ramos-Mota	4th Dept: 6 AD3d 1250 (Monroe)	denied 6/15/04 (Kaye, Ch.J.)
People v Ramsey	2d Dept: 5 AD3d 610 (Kings)	denied 6/23/04 (G.B. Smith, J.)
People v Reid	3d Dept: 2 AD3d 1061 (Albany)	denied 6/18/04 (Kaye, Ch.J.)
People v Ricks	2d Dept: 5 AD3d 698 (Kings)	denied 6/14/04 (Kaye, Ch.J.)
People v Rivers	App Div, 2d Dept, 3/1/04 (Kings)	dismissed 6/15/04 (Read, J.)
People v Rizzo	3d Dept: 5 AD3d 924 (Sullivan)	denied 6/24/04 (G.B. Smith, J.)
People v Robinson (Stevie)	2d Dept: 5 AD3d 508 (Dutchess)	denied 6/23/04 (Read, J.)
People v Robinson (William)	2d Dept: 5 AD3d 610 (Queens)	denied 6/10/04 (Rosenblatt, J.)
People v Rodriguez (Christopher)	2d Dept: 7 AD3d 545 (Queens)	denied 6/25/04 (Grafteo, J.)

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People v Rodriguez (Devonne)	2d Dept: 6 AD3d 631 (Suffolk)	denied 6/18/04 (Rosenblatt, J.)
People v Rodriguez (Henry)	1st Dept: 6 AD3d 338 (NY)	denied 6/18/04 (Rosenblatt, J.)
People v Rogers	3d Dept: 5 AD3d 871 (Otsego)	denied 6/24/04 (Read, J.)
People v Rojas	2d Dept: 6 AD3d 1251 (Westchester)	denied 6/21/04 (Kaye, Ch.J.)
People v Rolle	2d Dept: 4 AD3d 542 (Queens)	denied 6/25/04 (G.B. Smith, J.)
People v Rosario (Alexander)	1st Dept: 6 AD3d 175 (NY)	denied 6/30/04 (Ciparick, J.)
People v Rosario (Luis)	2d Dept: 6 AD3d 1251 (Queens)	denied 6/23/04 (G.B. Smith, J.)
People v Ruffin	County Ct, 5/18/04 (Monroe)	denied 6/21/04 (Grafteo, J.)
People v Russell	2d Dept: 7 AD3d 818 (Suffolk)	denied 6/21/04 (Kaye, Ch.J.)
People v Sanchez (Martin)	4th Dept: 309 AD2d 1312 (Wyoming)	denied 6/24/04 (G.B. Smith, J.)
People v Sanchez (Ricardo)	1st Dept: 2 AD3d 160 (NY)	denied 6/24/04 (G.B. Smith, J.) (upon reconsideration)
People v Sandson	2d Dept: 6 AD3d 632 (Queens)	denied 6/30/04 (G.B. Smith, J.)
People v Sanjuan	1st Dept: 6 AD3d 247 (Bronx)	denied 6/23/04 (Read, J.)
People v Santana	2d Dept: 5 AD3d 798 (Westchester)	denied 6/24/04 (G.B. Smith, J.)
People v Santiago	1st Dept: 7 AD3d 963 (Bronx)	denied 6/30/04 (Grafteo, J.)
People v Saracina	4th Dept: 5 AD3d 1132 (Chautauqua)	denied 6/23/04 (Read, J.)
People v Scaccia	4th Dept: 4 AD3d 808 (Onondaga)	denied 6/9/04 (Kaye, Ch.J.)
People v Schachter	1st Dept: 6 AD3d 111 (NY)	denied 6/24/04 (G.B. Smith, J.)
People v Scott (Cornelius)	1st Dept: 5 AD3d 250 (NY)	denied 6/23/04 (R.S. Smith, J.)
People v Scott (Jamal)	2d Dept: 7 AD3d 546 (Kings)	denied 6/22/04 (Kaye, Ch.J.)
People v Scott (Kenneth)	2d Dept: 6 AD3d 555 (Westchester)	denied 6/23/04 (G.B. Smith, J.)
People v Scott (Shawn)	2d Dept: 6 AD3d 465 (Kings)	denied 6/24/04 (R.S. Smith, J.)
People v Sealy	1st Dept: 7 AD3d 287 (NY)	denied 6/30/04 (G.B. Smith, J.)
People v Seeber	3d Dept: 4 AD3d 620 (Saratoga)	granted 6/22/04 (R.S. Smith, J.)

People v Shelby	1st Dept: 5 AD3d 231 (NY)	denied 6/4/04 (Kaye, Ch.J.)
People v Shorter	4th Dept: 6 AD3d 1204 (Ontario)	denied 6/25/04 (Grafteo, J.)
People v Sibre	App Div, 2d Dept, 5/6/04 (Queens)	dismissed 6/15/04 (Grafteo, J.)
People v Silverio	App Div, 1st Dept, 5/10/04 (Bronx)	dismissed 6/24/04 (Grafteo, J.)
People v Slater	2d Dept: 5 AD3d 700 (Kings)	denied 6/25/04 (G.B. Smith, J.)
People v Small	2d Dept: 7 AD3d 819 (Kings)	denied 6/21/04 (Kaye, Ch.J.)
People v Smith (Eddie)	1st Dept: 5 AD3d 291 (NY)	denied 6/15/04 (Kaye, Ch.J.)
People v Smith (John)	2d Dept: 1 AD3d 532 (Kings)	denied 6/10/04 (Ciparick, J.)
People v Smith (Leon)	1st Dept: 4 AD3d 163 (NY)	denied 6/10/04 (Rosenblatt, J.)
People v Smyth	App Div, 3d Dept, 1/30/04 (Broome)	denied 6/7/04 (Grafteo, J.)
People v Solomon	1st Dept: 6 AD3d 335 (NY)	denied 6/30/04 (Ciparick, J.)
People v Sommerville	4th Dept: 6 AD3d 1232 (Erie)	denied 6/24/04 (R.S. Smith, J.)
People v Spruill	1st Dept: 5 AD3d 318 (Bronx)	denied 6/23/04 (R.S. Smith, J.)
People v Steinbergin	1st Dept: 4 AD3d 192 (NY)	denied 6/22/04 (Kaye, Ch.J.)
People v Stevenson	2d Dept: 5 AD3d 405 (Suffolk)	denied 6/23/04 (G.B. Smith, J.)
People v Stewart	2d Dept: 5 AD3d 614 (Kings)	denied 6/25/04 (G.B. Smith, J.)
People v Stroman	3d Dept: 6 AD3d 818 (Schenectady)	denied 6/10/04 (Ciparick, J.)
People v Sturdivant	2d Dept: 6 AD3d 733 (Queens)	denied 6/30/04 (Ciparick, J.)
People v Sullivan	4th Dept: 6 AD3d 1175 (Erie)	denied 6/21/04 (Grafteo, J.)
People v Sykes	2d Dept: 5 AD3d 509 (Kings)	denied 6/24/04 (G.B. Smith, J.)
People v Taylor (Edwin)	4th Dept: 4 AD3d 875 (Monroe)	denied 6/23/04 (G.B. Smith, J.) (Appeal No. 1)
People v Taylor (Edwin)	4th Dept: 4 AD3d 876 (Monroe)	denied 6/23/04 (G.B. Smith, J.) (Appeal No. 2)
People v Taylor (Keith)	1st Dept: 5 AD3d 333 (NY)	denied 6/18/04 (Kaye, Ch.J.)
People v Taylor (Marlon)	2d Dept: 5 AD3d 614 (Westchester)	denied 6/8/04 (Ciparick, J.)

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People v Taylor (Timothy)	App Div, 4th Dept, 5/4/04 (Wayne)	dismissed 6/15/04 (Read, J.)
People v Terry (Roy)	4th Dept: 5 AD3d 1131 (Genesee)	denied 6/2/04 (Grafteo, J.) (Appeal No. 1)
People v Terry (Roy)	4th Dept: 5 AD3d 1131 (Genesee)	denied 6/2/04 (Grafteo, J.) (Appeal No. 2)
People v Thompson (James)	1st Dept: 6 AD3d 319 (NY)	denied 6/21/04 (Grafteo, J.)
People v Thompson (Mari)	3d Dept: 4 AD3d 626 (St. Lawrence)	denied 6/22/04 (R.S. Smith, J.)
People v Thomson	3d Dept: 2 AD3d 1214 (Saratoga)	denied 6/22/04 (Kaye, Ch.J.)
People v Todd	1st Dept: 6 AD3d 240 (NY)	denied 6/30/04 (Ciparick, J.)
People v Toole	4th Dept: 4 AD3d 787 (Erie)	denied 6/8/04 (R.S. Smith, J.)
People v Torres (Delvis)	1st Dept: 6 AD3d 1250 (Bronx)	denied 6/10/04 (Rosenblatt, J.)
People v Torres (Katherine)	1st Dept: 4 AD3d 154 (Bronx)	denied 6/24/04 (G.B. Smith, J.)
People v Torrez (Isael)	2d Dept: 5 AD3d 405 (Westchester)	denied 6/24/04 (G.B. Smith, J.)
People v Torrez (Israel)	2d Dept: 5 AD3d 405 (Westchester)	denied 6/24/04 (G.B. Smith, J.)
People v Torrez (Isreal)	2d Dept: 5 AD3d 405 (Westchester)	denied 6/24/04 (G.B. Smith, J.)
People v Turner	4th Dept: 6 AD3d 1190 (Monroe)	denied 6/24/04 (G.B. Smith, J.)
People v Tyler	1st Dept: 5 AD3d 333 (NY)	denied 6/18/04 (Kaye, Ch.J.)
People v Urquidez	2d Dept: 5 AD3d 800 (Nassau)	denied 6/21/04 (Kaye, Ch.J.)
People v Vachet	2d Dept: 5 AD3d 700 (Kings)	denied 6/29/04 (Ciparick, J.)
People v Valderas	1st Dept: 7 AD3d 265 (NY)	denied 6/25/04 (G.B. Smith, J.)
People v Vargas	App Div, 1st Dept, 5/13/04 (Bronx)	dismissed 6/10/04 (R.S. Smith, J.)
People v Vaughn	1st Dept: 4 AD3d 139 (NY)	denied 6/9/04 (Kaye, Ch.J.)
People v Velez	1st Dept: 6 AD3d 196 (Bronx)	denied 6/14/04 (Read, J.)
People v Vincente	1st Dept: 4 AD3d 217 (Bronx)	denied 6/7/04 (Grafteo, J.)
People v Wager	App Div, 3d Dept, 5/7/04 (Broome)	dismissed 6/10/04 (Rosenblatt, J.)

People v Walker (Calvin)	4th Dept: 2 AD3d 1358 (Erie)	denied 6/4/04 (Kaye, Ch.J.)
People v Walker (Derrick)	2d Dept: 5 AD3d 703 (Richmond)	denied 6/21/04 (Kaye, Ch.J.)
People v Wallace	1st Dept: 5 AD3d 122 (NY)	denied 6/24/04 (G.B. Smith, J.)
People v Walter	4th Dept: 5 AD3d 1107 (Oneida)	denied 6/30/04 (G.B. Smith, J.)
People v Walters	1st Dept: 299 AD2d 975 (Bronx)	denied 6/4/04 (Kaye, Ch.J.) (upon reconsideration)
People v Warfield	1st Dept: 6 AD3d 218 (NY)	denied 6/21/04 (Grafteo, J.)
People v Washington	2d Dept: 5 AD3d 615 (Kings)	denied 6/4/04 (Kaye, Ch.J.)
People v Watkins (Harold)	2d Dept: 5 AD3d 510 (Suffolk)	denied 6/23/04 (Read, J.)
People v Watkins (Steven)	2d Dept: 6 AD3d 734 (Kings)	denied 6/30/04 (G.B. Smith, J.)
People v White (Lamont)	1st Dept: 4 AD3d 225 (NY)	denied 6/24/04 (G.B. Smith, J.)
People v White (Robert)	2d Dept: 5 AD3d 511 (Queens)	denied 6/24/04 (G.B. Smith, J.)
People v Wiggins	2d Dept: 6 AD3d 634 (Orange)	denied 6/15/04 (Kaye, Ch.J.)
People v Wilcox	4th Dept: 4 AD3d 794 (Oneida)	denied 6/24/04 (Read, J.)
People v Wiley	1st Dept: 4 AD3d 206 (NY)	denied 6/10/04 (Ciparick, J.)
People v Williams (Amir)	4th Dept: 6 AD3d 1149 (Onondaga)	denied 6/21/04 (Grafteo, J.)
People v Williams (Grant)	2d Dept: 305 AD2d 703 (Richmond)	denied 6/14/04 (Read, J.)
People v Williams (Jazzmin)	2d Dept: 6 AD3d 467 (Dutchess)	denied 6/7/04 (Grafteo, J.)
People v Williams (Kipp)	2d Dept: 7 AD3d 549 (Queens)	denied 6/30/04 (Ciparick, J.)
People v Williams (Leodis)	3d Dept: 6 AD3d 746 (Albany)	denied 6/24/04 (R.S. Smith, J.)
People v Williams (Wayland)	4th Dept: 6 AD3d 1176 (Monroe)	denied 6/21/04 (Grafteo, J.)
People v Williams (Wykim)	2d Dept: 5 AD3d 407 (Queens)	denied 6/15/04 (Kaye, Ch.J.)
People v Wilson	2d Dept: 6 AD3d 558 (Queens)	denied 6/21/04 (Grafteo, J.)
People v Winston	2d Dept: 5 AD3d 610 (Queens)	denied 6/10/04 (Rosenblatt, J.)
People v Winter	App Term, 1st Dept: 2 Misc 3d 131(A) (NY)	denied 6/22/04 (Kaye, Ch.J.)

People v Woods	2d Dept: 6 AD3d 634 (Queens)	denied 6/22/04 (Kaye, Ch.J.)
People v Woolfe	4th Dept: 5 AD3d 1097 (Ontario)	denied 6/8/04 (R.S. Smith, J.)
People v Wright	3d Dept: 5 AD3d 873 (Warren)	denied 6/21/04 (Grafteo, J.)

[816 NE2d 561, 782 NYS2d 689]

In the Matter of **NEWSDAY, INC.**, Appellant. **ROBERT D. MORGENTHAU**, as District Attorney of New York County, Intervenor-Respondent.

Decided July 1, 2004

SUMMARY

APPEAL, on alleged constitutional grounds, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 17, 2004. The Appellate Division affirmed an order of the Supreme Court, New York County (Brenda Soloff, J.), which had denied petitioner's motion to unseal records submitted in support of a search warrant.

Matter of Newsday, Inc., 4 AD3d 162, appeal dismissed.

HEADNOTE

Appeal — Matters Appealable

An appeal to the Court of Appeals is dismissed in a criminal proceeding arising from a petitioner's application to intervene and obtain access to records supporting issuance of a search warrant in a criminal investigation. No statutory authority exists for review of Supreme Court's order. As it was issued in a criminal proceeding, Supreme Court's order was not appealable to the Appellate Division under CPL article 450. Nor is the Appellate Division order appealable to the Court of Appeals by permission pursuant to CPL 460.20 because it is not an appealable order as defined by CPL 450.90.

APPEARANCES OF COUNSEL

Levine Sullivan Koch & Schulz LLP, New York City (*David A. Schulz*, *Gayle C. Sproul* and *Alia L. Smith* of counsel), for appellant.

Robert M. Morgenthau, District Attorney, New York City (*Michael Morgan* of counsel), for intervenor-respondent.

OPINION OF THE COURT

MEMORANDUM.

The appeal should be dismissed, without costs, on the ground that no statutory authority exists for our review of Supreme Court's order in this criminal proceeding (see *Matter of Manners [Christopher L.]*, 74 NY2d 734 [1989]).

Newsday's application to intervene and obtain access to records supporting issuance of a search warrant was an application "involving a criminal investigation and the proceeding in which the order was issued was therefore a criminal proceeding" (*Matter of Alphonso C. [Morgenthau]*, 38 NY2d 923, 924-925 [1976], citing CPL 1.20 [18] [b]; *Matter of Santangelo v People*, 38 NY2d 536 [1976]).* As it was issued in a criminal proceeding, Supreme Court's order was not appealable to the Appellate Division under CPL article 450, nor is the Appellate Division order appealable to this Court by permission pursuant to CPL 460.20 because it is not an appealable order as defined by CPL 450.90. Remedies available to Newsday could have been via a Freedom of Information Law request (Public Officers Law § 87) or a civil proceeding pursuant to CPLR article 78 at the trial court level (see e.g. *Matter of Gannett Co. v De Pasquale*, 43 NY2d 370 [1977]; *Matter of Associated Press v Bell*, 70 NY2d 32 [1987]), from which an appeal to this Court might ultimately have been taken.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Appeal dismissed, without costs, by the Court of Appeals sua sponte, in a memorandum.

* By contrast, we note that "the direct appealability of orders granting or denying motions to quash subpoenas in criminal investigations and actions has a peculiar analytical basis" (*Matter of Cunningham v Nadjari*, 39 NY2d 314, 317 [1976]). Indeed, since 1936, in a line of cases originating with *People v Doe* (272 NY 473 [1936]), this Court has permitted direct appeal of those orders on the ground that "they were final orders in special proceedings on the civil side of a court vested with civil jurisdiction" (*Cunningham*, 39 NY2d at 317, citing *Matter of Boikess v Aspland*, 24 NY2d 136, 138-139 [1969]). In *Cunningham*, however, we recognized that "on a basis of *stare decisis* these precedents represent a formidable line of authority, however asymmetrical may appear to be the support for the rule they express and apply" (39 NY2d at 317; see also *Matter of Abrams [John Anonymous]*, 62 NY2d 183, 192 [1984]).

In the Matter of ANNETTE B. ORANGE COUNTY DEPARTMENT OF
SOCIAL SERVICES, Respondent; JOSEPH B., Appellant.

Submitted May 17, 2004; decided July 1, 2004

Reported below, 2 AD3d 721.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying appellant's motion for leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise granted.

In the Matter of LAWRENCE R. CASTELLANO, Appellant, v JULIANE
C. ROSS, Respondent.

Submitted May 24, 2004; decided July 1, 2004

Reported below, 6 AD3d 1132, 1251.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that affirmed the denial of the motion for leave to reargue, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

ANTHONY DEROSA, Appellant, v J.P. MORGAN CHASE et al.,
Respondents, et al., Defendant.

Submitted May 24, 2004; decided July 1, 2004

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

MELISSA D. KAMENS et al., Appellants-Respondents, v UTICA
MUTUAL INSURANCE COMPANY, Respondent, and VIOLETTA
Q. DICKINSON, Respondent-Appellant. (Appeal No. 1.)

MELISSA D. KAMENS et al., Appellants-Respondents, v UTICA
MUTUAL INSURANCE COMPANY, Respondent, and VIOLETTA
Q. DICKINSON et al., Respondents-Appellants. (Appeal No.
2.)

Submitted June 7, 2004; decided July 1, 2004

Reported below, 6 AD3d 1237, 1245.

On the Court's own motion, cross appeals by Violetta Dickinson, in her individual and representative capacities, dismissed, each without costs, upon the ground that the two-Justice dissents at the Appellate Division are not in favor of the cross appellants (*see* CPLR 5601 [a]). Utica Mutual Insurance Company's motion for a stay granted.

ROBERT V. MARVIN et al., Appellants, v KOREAN AIR INC. et al., Respondents, et al., Defendant.

Submitted May 24, 2004; decided July 1, 2004

Reported below, 2 AD3d 223.

Motion for reargument granted and, upon reargument, motion for leave to appeal granted.

In the Matter of SUSAN MCCARTNEY, Individually and as Chairman of Preservation of Coalition of Erie County, Inc., et al., Appellants, v DORMITORY AUTHORITY OF STATE OF NEW YORK et al., Respondents.

Submitted June 7, 2004; decided July 1, 2004

Reported below, 5 AD3d 1090.

Motion by Preservation League of New York State, Inc. for leave to appear *amicus curiae* on the motion for leave to appeal herein granted and the brief is accepted as filed.

CAROL A. NIZNIK, Appellant, v ERIC KNIGHT et al., Respondents.

Submitted June 14, 2004; decided July 1, 2004

Appeal dismissed, without costs, by the Court of Appeals, *sua sponte*, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERNEST BOYD, Appellant.

Submitted June 1, 2004; decided July 1, 2004

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this

motion for leave to appeal from the order of County Court entered in this proceeding commenced in City Court (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RENE VALENCIA, Appellant.

Submitted June 14, 2004; decided July 1, 2004

Reported below, 306 AD2d 65.

Motion to enlarge the record on appeal denied. Motion for an extension of time to file respondent's brief granted and respondent directed to file its brief within 30 days of the disposition of this motion.

In the Matter of PETER G. and Others, Children Alleged to be Neglected. ANGELA G. et al., Respondents; ADMINISTRATION FOR CHILDREN'S SERVICES, Appellant.

Submitted June 14, 2004; decided July 1, 2004

Reported below, 6 AD3d 201.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the two-Justice dissent is not on a question of law (CPLR 5601 [a]).

WENDE C. et al., Appellants, v UNITED METHODIST CHURCH, NEW YORK WEST AREA, Defendant, and WESTERN NEW YORK CONFERENCE OF UNITED METHODIST CHURCH et al., Respondents.

Submitted July 26, 2004; decided July 29, 2004

Reported below, 6 AD3d 1047.

On reading and filing [the] stipulation, it is ordered, that the above-captioned appeal be and the same hereby is withdrawn as to respondent Hosanna Junction United Methodist Church.
